

REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
NUEVA VIZCAYA 2ND DISTRICT ENGINEERING OFFICE
Malasin, Dupax del Norte, Nueva Vizcaya

BIDDING DOCUMENTS

FOR

CONTRACT ID: 24BJ0005
CONTRACT NAME: Protect Lives and Properties Against Major
Floods: Construction/Maintenance of Flood
Mitigation Structures and Drainage Systems:
Construction of Flood Control along Sta. Fe
River, Balete Section, Sta. Fe, Nueva Vizcaya
CONTRACT LOCATION: Sta. Fe, Nueva Vizcaya

Date of Opening of Technical and : November 20, 2023
Financial Proposals

Date of Issuance of Bidding Documents : October 31 – November 20, 2023

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24BJ0005: Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation
Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Baleté Section,
Location: Sta. Fe, Nueva Vizcaya
Date of Opening of Proposal: 11-20-2023

Section I. Invitation to Bid



Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
NUEVA VIZCAYA
2ND DISTRICT ENGINEERING OFFICE
REGIONAL OFFICE II
Dupax del Norte, Nueva Vizcaya



INVITATION TO BID

For

24BJ0005 : Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Balete Section, Sta. Fe, Nueva Vizcaya

1. The **DPWH-Nueva Vizcaya 2nd District Engineering Office**, through the **National Expenditure Program (NEP) FY 2024** intends to apply the sum of **₱96,500,000.00** being the Approved Budget for the Contract (ABC) to payments under the contract **24BJ0005: Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Balete Section, Sta. Fe, Nueva Vizcaya**. Bids received in excess of the ABC shall be automatically rejected at bid opening.
2. The **DPWH-Nueva Vizcaya 2nd District Engineering Office** through its Bids and Awards Committee now invites bids for the hereunder Works:

Name of Contract	Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Balete Section, Sta. Fe, Nueva Vizcaya
Contract ID No.	24BJ0005
Location	Sta. Fe, Nueva Vizcaya
Scope of Works	<u>Facilities for the Engineer</u> • Provision of Field Office for the Engineer (Rental Basis) • Operation & Maintenance of Field Office for the Engineer • Provision of 4x4 Pick Up Type Service Vehicle for the Engineer on Bare Rental Basis • Operation and Maintenance of 4x4 Pick Up Type Service Vehicle for the Engineer • Provision of Progress Photographs <u>Other General Requirements</u>

		• Project Billboards/Signboards • Occupational Health and Safety Program • Mobilization/ Demobilization <u>Civil Works Component</u> • Surplus Unclassified Excavation • Embankment, from roadway/structure excavation • Embankment, from Borrow • Rubble Concrete • Gabion 1mx1mx2m • Pipe Culverts
Approved Budget for the Contract (ABC)		₱96,500,000.00
Contract Duration		250 Calendar Days

- The major category of work for the project is **FCSPS – Flood Control: Construction – Slope Protection using Structural Measures**
- Prospective Bidders should be registered with and classified by the Philippine Contractors Accreditation Board (PCAB) with PCAB LICENSE Size Range of at least **Medium A** for Flood Control.

Contractors/applicants who wish to participate in this bidding are encouraged to enroll in the DPWH Civil Works Application (CWA) at the DPWH Procurement Service (PrS), 5th Floor, DPWH Bldg., Bonifacio Drive, Port Area, Manila, **while those already enrolled shall keep their records current and updated.** The Contractor's eligibility to bid on the project will be determined using the DPWH Contractor Profile Eligibility Process (CPEP) and subject to further post-qualification. Information on registration can be obtained from the PrS during working weekdays from 7:00 am to 4:00 pm or at the DPWH website www.dpwh.gov.ph.

- GPPB resolution No. 15- 2021 states, "Lifting the Suspension on the Implementation of the Mandatory Submission of PhilGEPS Certificate of Platinum Registration and Membership in Competitive Bidding and Limited Source Bidding; Amending Sections 8.5.2, 23.1 (a)(ii), 23.3, 24.1 (a)(ii), 24.4.3, 34.3 and 54.6 of the 2016 Revised IRR of RA No. 9184, Items IV (G)(1) and V (D)(1)(b) as well as Appendix "A" of Annex "H" thereof, Items 4 and 6 of the Guidelines for the use of the Government of the Philippines – Official Merchants Registry, and Item 1 of Section VIII and IX of the 6th Edition of the Philippine Bidding Documents for Goods and Infrastructure Projects", dated October 14, 2021. In lieu of the above, prospective bidders shall submit in their bid the **Updated PhilGEPS Certificate of Platinum Registration and Membership** in accordance with Sections 23.3, 24.4.3 and 54 of Republic Act 9184 (RA9184).
- Bidders are required to update their existing PhilGEPS Registration (Platinum) in the DPWH

Civil Works Registry prior to the scheduled receipt and opening of bids.

- Bidding will be conducted through open competitive bidding procedures using non- discretionary "pass/fail" criterion as specified in the 2016 Revised Implementing Rules and Regulations (IRR) of

Republic Act 9184 (RA 9184), otherwise known as the "Government Procurement Reform Act". The contract shall be awarded to the Lowest Calculated Responsive Bidder (LCRB) who was determined as such during post-qualification.

Guidelines on the Implementation of Early Procurement Activities (EPA).

8. Interested bidders may obtain further information from the **DPWH Nueva Vizcaya 2nd District Engineering Office** and inspect the Bidding Documents at **Procurement Staff of DPWH Nueva Vizcaya 2nd District Engineering Office, Malasin, Dupax del Norte, Nueva Vizcaya** during weekdays from **8:00 A.M. to 5:00 P.M.**
9. A complete set of Bidding Documents may be acquired by interested bidders on **October 31, 2023 to November 20, 2023**, from the address given below and upon payment of the applicable fee for the Bidding Documents, pursuant to the latest Guidelines issued by the GPPB, in the amount of **Fifty Thousand Pesos Only (P50,000.00)**.

Pursuant to Section 17. 5 of the 2016 Revised IRR of RA 9184, Bidding Documents Fee may be refunded in accordance with the aforementioned Guidelines based on the grounds provided for under Section 41 of RA 9184 and its IRR.
10. The Bidding Documents may also be downloaded free of charge from the website of the Philippine Government Electronic Procurement System (PhilGEPS), and the website of the Procuring Entity, provided that bidders shall pay the applicable fee for the Bidding Documents not later than the submission of their bids.
11. The **DPWH Nueva Vizcaya 2nd District Engineering Office** will hold a **Pre-Bid Conference** on **November 7, 2023, 9:00 AM** at the **Conference Room, DPWH Nueva Vizcaya 2nd District Engineering Office, Malasin, Dupax del Norte, Nueva Vizcaya**, and/or through webcasting via Facebook Page (DPWH-Nueva Vizcaya 2nd DEO-BAC) and Youtube Channel (DPWH Nueva Vizcaya 2nd DEO Procurement Livestream) which shall be open to prospective bidders. Prospective bidders are encouraged to send their technical personnel to attend the Pre-Bid Conference.
12. Bid submission may be done **manually** or **electronically**. However, **bidders should only select one mode of submission**, either manual or electronic. Similar to manual submission, the guidelines for the preparation and submission of an electronic bid are contained in the **BDS** Clause 17.
13. Bids must be duly received by the BAC Secretariat for manual submission at the **Conference Room, DPWH Nueva Vizcaya 2nd District Engineering Office, Malasin, Dupax del Norte, Nueva Vizcaya** or at **electronicbids_nuevavizcaya2@dpwh.gov.ph** for electronic submission and receipt of bids on or before **November 20, 2023 at 10:00 AM**. Late bids shall not be accepted.
14. All bids must be accompanied by a bid security in any of the acceptable forms and in the amount stated in **BDS** Clause 15.1.
15. Bid opening shall be on **November 20, 2023, immediately after the deadline for the submission of bid** at the **Conference Room, DPWH Nueva Vizcaya 2nd District Engineering Office, Malasin, Dupax del Norte, Nueva Vizcaya**. Bids will be opened in the presence of the bidders' representatives who choose to attend at the address below.

16. The **DPWH Nueva Vizcaya 2nd District Engineering Office** reserves the right to reject any and all bids, declare a failure of bidding, or not award the contract at any time prior to contract award in accordance with Sections 35.6 and 41 of the 2016 Revised IRR of RA 9184, updated as of September 30, 2022, without thereby incurring any liability to the affected bidder or bidders.

17. You may visit the following websites; For downloading bidding documents:

DPWH website: www.dpwh.gov.ph

PhilGEPS website: www.philgeps.gov.ph

For online bid submission: **electronicbids_nuevavizcaya2@dpwh.gov.ph**

18. For further information, please refer to:

ROVERLYN M. URRO

Head, Procurement Unit

DPWH Nueva Vizcaya 2nd DEO

Malasin, Dupax del Norte, Nueva Vizcaya

Contact no.: 0908-410-2971

Email address: procurement.nuevavizcaya2nd@gmail.com

FERDINAND DF. BAYABOS

Chief, Planning and Design Section BAC Chairperson

DPWH Nueva Vizcaya 2nd DEO

Malasin, Dupax del Norte, Nueva Vizcaya

Noted:

MARLYN G. INGUILLO

District Engineer

Date of Posting:

DPWH and PhilGEPS Websites: October 31 - November 6, 2023

Conspicuous Place (Procurement Bulletin Board): October 31 - November 6, 2023

Section II. Instructions to Bidders

1. Scope of Bid

The Procuring Entity, [indicate name] invites Bids for the [insert Procurement Project], with Project Identification Number [indicate number].

[Note: The Project Identification Number is assigned by the Procuring Entity based on its own coding scheme and is not the same as the PhilGEPS reference number, which is generated after the posting of the bid opportunity on the PhilGEPS website.]

The Procurement Project (referred to herein as "Project") is for the construction of Works, as described in Section VI (Specifications).

2. Funding Information

2.1. The GOP through the source of funding as indicated below for [indicate funding year] in the amount of [indicate amount].

2.2. The source of funding is:

[If an early procurement activity, select one and delete others:]

- a. NGA, the National Expenditure Program.
- b. GOCC and GFIs, the proposed Corporate Operating Budget.
- c. LGUs, the proposed Local Expenditure Program.

[If not an early procurement activity, select one and delete others:]

- a. NGA, the General Appropriations Act or Special Appropriations.
- b. GOCC and GFIs, the Corporate Operating Budget.
- c. LGUs, the Annual or Supplemental Budget, as approved by the Sanggunian.

3. Bidding Requirements

The Bidding for the Project shall be governed by all the provisions of RA No. 9184 and its 2016 revised IRR, including its Generic Procurement Manual and associated policies, rules and regulations as the primary source thereof, while the herein clauses shall serve as the secondary source thereof.

Any amendments made to the IRR and other GPPB issuances shall be applicable only to the ongoing posting, advertisement, or invitation to bid by the BAC through the issuance of a supplemental or bid bulletin.

The Bidder, by the act of submitting its Bid, shall be deemed to have inspected the site, determined the general characteristics of the contracted Works and the conditions for this Project, such as the location and the nature of the work; (b) climatic conditions; (c) transportation facilities; (c) nature and condition of the terrain,

geological conditions at the site communication facilities, requirements, location and availability of construction aggregates and other materials, labor, water, electric power and access roads; and (d) other factors that may affect the cost, duration and execution or implementation of the contract, project, or work and examine all instructions, forms, terms, and project requirements in the Bidding Documents.

4. Corrupt, Fraudulent, Collusive, Coercive, and Obstructive Practices

The Procuring Entity, as well as the Bidders and Contractors, shall observe the highest standard of ethics during the procurement and execution of the contract. They or through an agent shall not engage in corrupt, fraudulent, collusive, coercive, and obstructive practices defined under Annex "I" of the 2016 revised IRR of RA No. 9184 or other integrity violations in competing for the Project.

5. Eligible Bidders

5.1. Only Bids of Bidders found to be legally, technically, and financially capable will be evaluated.

5.2. The Bidder must have an experience of having completed a Single Largest Completed Contract (SLCC) that is similar to this Project, equivalent to at least fifty percent (50%) of the ABC adjusted, if necessary, by the Bidder to current prices using the PSA's CPI, except under conditions provided for in Section 23.4.2.4 of the 2016 revised IRR of RA No. 9184.

A contract is considered to be "similar" to the contract to be bid if it has the major categories of work stated in the **BDS**.

5.3. For Foreign-funded Procurement, the Procuring Entity and the foreign government/foreign or international financing institution may agree on another track record requirement, as specified in the Bidding Document prepared for this purpose.

5.4. The Bidders shall comply with the eligibility criteria under Section 23.4.2 of the 2016 IRR of RA No. 9184.

6. Origin of Associated Goods

There is no restriction on the origin of Goods other than those prohibited by a decision of the UN Security Council taken under Chapter VII of the Charter of the UN.

7. Subcontracts

7.1. The Bidder may subcontract portions of the Project to the extent allowed by the Procuring Entity as stated herein, but in no case more than fifty percent (50%) of the Project.

The Procuring Entity has prescribed that:

- a. Subcontracting is allowed.

- 7.2. Subcontracting of any portion of the Project does not relieve the Contractor of any liability or obligation under the Contract. The Supplier will be responsible for the acts, defaults, and negligence of any subcontractor, its agents, servants, or workmen as fully as if these were the Contractor's own acts, defaults, or negligence, or those of its agents, servants, or workmen.

8. Pre-Bid Conference

The Procuring Entity will hold a pre-bid conference for this Project on the specified date and time and either at its physical address {[insert if applicable]} and/or through videoconferencing/webcasting} as indicated in **paragraph 11** of the **IB**.

9. Clarification and Amendment of Bidding Documents

Prospective bidders may request for clarification on and/or interpretation of any part of the Bidding Documents. Such requests must be in writing and received by the Procuring Entity, either at its given address or through electronic mail indicated in the **IB**, at least ten (10) calendar days before the deadline set for the submission and receipt of Bids.

10. Documents Comprising the Bid: Eligibility and Technical Components

- 10.1. The first envelope shall contain the eligibility and technical documents of the Bid as specified in **Section IX. Checklist of Technical and Financial Documents**.
- 10.2. If the eligibility requirements or statements, the bids, and all other documents for submission to the BAC are in foreign language other than English, it must be accompanied by a translation in English, which shall be authenticated by the appropriate Philippine foreign service establishment, post, or the equivalent office having jurisdiction over the foreign bidder's affairs in the Philippines. For Contracting Parties to the Apostille Convention, only the translated documents shall be authenticated through an apostille pursuant to GPPB Resolution No. 13-2019 dated 23 May 2019. The English translation shall govern, for purposes of interpretation of the bid.
- 10.3. A valid PCAB License is required, and in case of joint ventures, a valid special PCAB License, and registration for the type and cost of the contract for this Project. Any additional type of Contractor license or permit shall be indicated in the **BDS**.
- 10.4. A List of Contractor's key personnel (e.g., Project Manager, Project Engineers, Materials Engineers, and Foremen) assigned to the contract to be bid, with their complete qualification and experience data shall be provided. These key personnel must meet the required minimum years of experience set in the **BDS**.
- 10.5. A List of Contractor's major equipment units, which are owned, leased, and/or under purchase agreements, supported by proof of ownership, certification of

availability of equipment from the equipment lessor/vendor for the duration of the project, as the case may be, must meet the minimum requirements for the contract set in the **BDS**.

11. Documents Comprising the Bid: Financial Component

- 11.1. The second bid envelope shall contain the financial documents for the Bid as specified in **Section IX. Checklist of Technical and Financial Documents**.
- 11.2. Any bid exceeding the ABC indicated in **paragraph 1** of the **IB** shall not be accepted.
- 11.3. For Foreign-funded procurement, a ceiling may be applied to bid prices provided the conditions are met under Section 31.2 of the 2016 revised IRR of RA No. 9184.

12. Alternative Bids

Bidders shall submit offers that comply with the requirements of the Bidding Documents, including the basic technical design as indicated in the drawings and specifications. Unless there is a value engineering clause in the **BDS**, alternative Bids shall not be accepted.

13. Bid Prices

All bid prices for the given scope of work in the Project as awarded shall be considered as fixed prices, and therefore not subject to price escalation during contract implementation, except under extraordinary circumstances as determined by the NEDA and approved by the GPPB pursuant to the revised Guidelines for Contract Price Escalation guidelines.

14. Bid and Payment Currencies

- 14.1. Bid prices may be quoted in the local currency or tradeable currency accepted by the BSP at the discretion of the Bidder. However, for purposes of bid evaluation, Bids denominated in foreign currencies shall be converted to Philippine currency based on the exchange rate as published in the BSP reference rate bulletin on the day of the bid opening.
- 14.2. Payment of the contract price shall be made in:
 - a. Philippine Pesos.

15. Bid Security

- 15.1. The Bidder shall submit a Bid Securing Declaration or any form of Bid Security in the amount indicated in the **BDS**, which shall be not less than the percentage of the ABC in accordance with the schedule in the **BDS**.

- 15.2. The Bid and bid security shall be valid until 120 calendar days from the date of opening of bids. Any bid not accompanied by an acceptable bid security shall be rejected by the Procuring Entity as non-responsive.

16. Sealing and Marking of Bids

Each Bidder shall submit one copy of the first and second components of its Bid.

The Procuring Entity may request additional hard copies and/or electronic copies of the Bid. However, failure of the Bidders to comply with the said request shall not be a ground for disqualification.

If the Procuring Entity allows the submission of bids through online submission to the given website or any other electronic means, the Bidder shall submit an electronic copy of its Bid, which must be digitally signed. An electronic copy that cannot be opened or is corrupted shall be considered non-responsive and, thus, automatically disqualified.

17. Deadline for Submission of Bids

The Bidders shall submit on the specified date and time and either at its physical address or through online submission as indicated in **paragraph 13** of the **IB**.

18. Opening and Preliminary Examination of Bids

- 18.1. The BAC shall open the Bids in public at the time, on the date, and at the place specified in **paragraph 15** of the **IB**. The Bidders' representatives who are present shall sign a register evidencing their attendance. In case videoconferencing, webcasting or other similar technologies will be used, attendance of participants shall likewise be recorded by the BAC Secretariat.

In case the Bids cannot be opened as scheduled due to justifiable reasons, the rescheduling requirements under Section 29 of the 2016 revised IRR of RA No. 9184 shall prevail.

- 18.2. The preliminary examination of Bids shall be governed by Section 30 of the 2016 revised IRR of RA No. 9184.

19. Detailed Evaluation and Comparison of Bids

- 19.1. The Procuring Entity's BAC shall immediately conduct a detailed evaluation of all Bids rated "passed" using non-discretionary pass/fail criteria. The BAC shall consider the conditions in the evaluation of Bids under Section 32.2 of 2016 revised IRR of RA No. 9184.
- 19.2. If the Project allows partial bids, all Bids and combinations of Bids as indicated in the **BDS** shall be received by the same deadline and opened and evaluated simultaneously so as to determine the Bid or combination of Bids offering the lowest calculated cost to the Procuring Entity. Bid Security as required by **ITB** Clause 16 shall be submitted for each contract (lot) separately.

- 19.3. In all cases, the NFCC computation pursuant to Section 23.4.2.6 of the 2016 revised IRR of RA No. 9184 must be sufficient for the total of the ABCs for all the lots participated in by the prospective Bidder.

20. Post Qualification

Within a non-extendible period of five (5) calendar days from receipt by the Bidder of the notice from the BAC that it submitted the Lowest Calculated Bid, the Bidder shall submit its latest income and business tax returns filed and paid through the BIR Electronic Filing and Payment System (eFPS), and other appropriate licenses and permits required by law and stated in the **BDS**.

21. Signing of the Contract

The documents required in Section 37.2 of the 2016 revised IRR of RA No. 9184 shall form part of the Contract. Additional Contract documents are indicated in the **BDS**.

Section III. Bid Data Sheet

BID DATA SHEET

ITB Clause	
1	The DPWH Regional Office II invites Bids for the Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Baleta Section, Sta. Fe, Nueva Vizcaya, with Project Identification Number 24BJ0005. The Procurement Project (referred to herein as "Project") is for the construction of Works, as described in Section VI (Specifications).
2.1	The GOP through the source of funding as indicated below for FY 2024 in the amount of Ninety Eight Million Pesos Only (Php 96,500,000.00).
2.2	The source of funding is National Expenditure Program (NEP) FY 2024.
5.2	For this purpose, contracts similar to the Project refer to contracts which have the same major categories of work, which shall be: Major Categories of Work: FCSPS- Flood Control: Construction – Slope Protection using Structural Measures Similar Categories of Works: RCSPS – Roads: Construction – Slope Protection using Structural Measures (e.g. Retetment, Retaining structures, Wirenet) FHR – Flood Control; Hydraulics – River Control * Note: The above SLCC must be supported by an Owner’s Certificate of Final Acceptance issued by the project owner other than the contractor or a final rating at least Satisfactory in the Constructors Performance Evaluation System (CPES). In case of contracts with the private sector, an equivalent document shall be submitted.” Qualifier: Similar slope protection works with atleast 50% of the item f work of the project

7.1	Subcontracting is allowed in accordance with the 2016 Revised IRR of R.A. 9184.																																
10.3	No further instructions																																
10.4	The minimum work experience requirements for the key personnel are the following: <table><tr><th>Key Personnel</th><th>Min. Years of Total Work Experience (Same Position)</th><th>Min. Years of Similar Experience (Same Position)</th><th>T.I.N.</th></tr><tr><td>Project Manager</td><td>3</td><td>2</td><td></td></tr><tr><td>Project Engineer</td><td>5</td><td>3</td><td></td></tr><tr><td>Materials Engineer</td><td>Accredited Materials Engineer I</td><td>Accredited Materials Engineer I</td><td></td></tr><tr><td>Quantity Engineer/Surveyor</td><td>3</td><td>2</td><td></td></tr><tr><td>Foreman</td><td>5</td><td>3</td><td></td></tr><tr><td>Safety Officer</td><td colspan="2">Accredited by DOLE</td><td></td></tr><tr><td>Pollution Control Officer</td><td colspan="2">Certificate of Training issued by an EMB-recognized Organization</td><td></td></tr></table> Accredited Safety Officer (Required Upon issuance of Notice of Award) subject to D.O 98 Series of 2014: Submission of Construction Safety and Health Program Approved by the Department of Labor and Employment (DOLE). First Aider w/ certificate of Training issued by RED CROSS in compliance to DOLE requirements for the approval of Construction Safety & Health Program (Required Upon issuance of Notice of Award) subject to D.O 98 Series of 2014 : Submission of Construction Safety and Health Program Approved by the Department of Labor and Employment (DOLE). The key personnel should meet the following number of years' work experience. 1. The experience means total years of civil works experience (of any nature in construction and engineering consultancy services) 2. Include the Tax Identification Number (TIN) of the Key Personnel. Compliance to D.O. 98 series of 2016: Revised Guidelines on the Accreditation of Contractors'/Consultants' Materials Engineer. 3. Include the accreditation number and contact number of the Materials Engineer	Key Personnel	Min. Years of Total Work Experience (Same Position)	Min. Years of Similar Experience (Same Position)	T.I.N.	Project Manager	3	2		Project Engineer	5	3		Materials Engineer	Accredited Materials Engineer I	Accredited Materials Engineer I		Quantity Engineer/Surveyor	3	2		Foreman	5	3		Safety Officer	Accredited by DOLE			Pollution Control Officer	Certificate of Training issued by an EMB-recognized Organization		
Key Personnel	Min. Years of Total Work Experience (Same Position)	Min. Years of Similar Experience (Same Position)	T.I.N.																														
Project Manager	3	2																															
Project Engineer	5	3																															
Materials Engineer	Accredited Materials Engineer I	Accredited Materials Engineer I																															
Quantity Engineer/Surveyor	3	2																															
Foreman	5	3																															
Safety Officer	Accredited by DOLE																																
Pollution Control Officer	Certificate of Training issued by an EMB-recognized Organization																																

10.5	1) The minimum major equipment requirements are the following:		
	Equipment Description	Required No. of Units	Capacity
	Dump Truck	12 yd ³	2
	Backhoe, Wheel Mounted (0.28 cu.m.)	0.80 cu.m.	1
	Payloader	1.50 cu.m.	1
	Motorized Road Grader, G710A		1
	Water Truck/Pump	16,000L	1
	Bulldozer (167 Hp), DX175	167Hp	1
	Backhoe	0.80 m ³	1
	Vibratory Roller SD100DC	10 mt	1
	One Bagger Mixer		
	2) Laboratory Equipment Required No. of Units Minimum Capacity/Unit		
<u>Please refer to D.O. 11, Series of 2017 for the minimum materials testing equipment and D.O. 127, Series of 2018, Strict Application of R.A. 9184 in the conduct of Post-Qualification of Bidders with Delayed On-Going Contracts with the DPWH.</u>			
15.1	The bid security shall be limited to a Bid Securing Declaration or one of the following forms in accordance with the following amounts: 1. The amount of not less than two percent (2%) of ABC , if bid security is in cash, cashier's/manager's check, bank draft/guarantee or irrevocable letter of credit; 2. The amount of not less than five percent (5%) of ABC , if bid security is in Surety Bond.		
15.2	The Bid Security shall be valid until 120 calendar days from the date set for bid opening.		
17	Bid submission maybe done manually or electronically/online. However, bidders should only select one mode of submission, either manual or electronic.		

	The address for receipt of Bids submitted manually is at Conference Room, DPWH-Nueva Vizcaya 2nd District Engineering Office, Malasin, Dupax del Norte, Nueva Vizcaya The deadline for receipt of Bids is on November 20, 2023; 10:00 AM For bids to be submitted electronically/online, the following procedures should be observed following D.O. 87 s2020: Submission of electronic Official 1. Receipt of purchase of the Bidding Documents Prior to the deadline of submission of bids, the prospective bidders shall send an e-mail with subject "Official Receipt for 23B00066" to electronicbids_r2@dpwh.gov.ph. Attached to the said e-mail is the copy of the Official Receipt of purchase of bidding documents in Portable Document File (PDF) format with file name in the format "<PCAB ID>_<CONTRACT ID>_OfficialReceipt.pdf". For example, the filename of the attached PDF containing the Official Receipt of the Contractor with PCAB ID No. 12345, who intends to participate in the bidding of Contract ID No. 20Z00123 shall be "12345_20Z00123_OfficialReceipt.pdf". Further, the e-mail subject would be "Official Receipt for 20Z00123". In case a prospective bidder originally intends to join the bidding as a Joint Venture (referred as "original bidder"), has been issued an Official Receipt of purchase of bidding documents and has submitted the electronic Official Receipt, but eventually decided to join the bidding with new members or as individual contractors (referred as "regrouped bidder"), or vice-versa, the "regrouped bidder" should purchase a new bidding document to be issued with the corresponding Official Receipt in their name and submit the electronic Official Receipt following the same procedures. 2. Confirmation of the electronically submitted Official Receipt 2.1 An e-mail shall be received by a prospective bidder confirming its successful submission of the Official Receipt as required under Item 1. Only the electronic bids of bidders who have successfully submitted an electronic Official Receipt shall be accepted. 2.2 An e-mail shall also be received by a prospective bidder in instances where their sent e-mail related to Item 1: a. Has incorrect subject Contract ID, which means that a corresponding folder with the same Contract ID does not exist in the eBid Portal;
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	b. Has no attachment; c. Has an attachment but is not in the prescribed format; d. Has more than one (1) attachment; or e. Was received after the deadline of bid submission. For the foregoing cases, the prospective bidders should rectify/correct the noted deficiency/ies to comply with the requirements under Item 1 for its electronic bid to be accepted. 3. Preparation and submission of an electronic Bid The prospective bidders shall prepare and submit their bids electronically following the steps prescribed under with D.O. ____ - 2020 in accordance with GPPB Resolution No. 09-2020 as follows: a. Following GPPB Resolution No. 09-2020, a bidder has the option to submit bid electronically. However, If a bidder chooses to submit an electronic bid, the same bidder can no longer submit a bid manually for the same contract, and vice versa. b. Similar to manual submission, prospective bidders shall prepare their bids in two (2) file folders, each for the Technical and Financial Components. The file name of the Technical and Financial Components folders should be in the format <PCAB ID>_<CONTRACT_ID>_TECHNICAL and <PCAB ID>_<CONTRACT_ID>_FINANCIAL (e.g. 12345 20Z00123 TECHNICAL, 12345 20Z00123 FINANCIAL). Subsequently, each of the Technical and Financial Components file folders shall be COMPRESSED, PASSWORD PROTECTED and NAMED in the format <PCAB ID>_<CONTRACT_ID>_TECHNICAL.zip (or .rar/.7z) and <PCAB ID>_<CONTRACT_ID>_FINANCIAL.zip (or .rar/.7z), respectively (e.g. 12345 20Z00123 TECHNICAL.zip, 12345 20Z00123 FINANCIAL.zip). c. Each file contained in the Technical and Financial Components file folders shall be in PDF format (either scanned or exported/published), with file name in the format <PCAB ID>_<CONTRACT ID>_DescriptiveFilename.pdf (e.g. 12345 20Z00123 PCABLicense.pdf, 12345 20Z00123 OmnibusSwornStatement.pdf). d. The compressed archive file folders of the Technical and Financial components shall be compiled in a PASSWORD PROTECTED COMPRESSED ARCHIVE MAIN FILE
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	FOLDER with filename in the format <PCAB>_<CONTRACT ID>_Bid (e.g. 12345 20Z00123 Bid). In case the total file size of the main archive file folder is more than the allowable size of an attachment per e-mail of the prospective bidder's e-mail service provider (e.g. Gmail, Yahoo Mail, Outlook), they shall need to split its electronic bid into two or more PASSWORD PROTECTED COMPRESSED ARCHIVE MAIN FILE FOLDERS. e. The e-mail submitting the prospective bidder's electronic bid should have a Subject in the format "Bid Submission for [Insert Contract ID]" (e.g. "Bid Submission for 20Z00123"). In case of multiple compressed archive main file folders, it shall be submitted in multiple e-mails, each with Subject in the format "Bid Submission [Insert Number of main archive folder]/[Insert total number of main archive folders]" (e.g. "Bid Submission 1/2 for 20Z00123" and "Bid Submission 2/2 for 20Z00123"). f. The prospective bidder shall submit its electronic bid to electronicbids_r2@dpwh.gov.ph using the prospective bidder's e-mail address registered in the Civil Works Application (CWA). In case prospective bidders are not yet registered, they can use any e-mail address, subject to the verification of the BAC Secretariat. 4. Modification of an electronic bid If a bidder wishes to modify its electronic bid, he may do so following the procedures in the manual submission of bid or he may choose to submit his modification electronically in the same format prescribed in the preparation and submission of an electronic bid, except that the subject of the e-mail submitting the bid modification shall be labelled "Bid Modification X for <Contract ID>", where "X" represents the number of bid modification submitted. For example, the subject of an e-mail submitting a first bid modification for Contract ID No. 20Z00123 should be "Bid Modification 1 for 20Z00123". 5. Non-participation in the Bidding In case a prospective bidder that have purchased a bidding document decided not to participate, he may choose to submit his letter of non-participation manually or electronically. In case of electronic submission, the contractor shall send an e-mail with
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	the Subject "Non-participation for <Contract ID>" with the letter of non-participation as attachment with file name "<PCAB ID>_<CONTRACT ID>_Non-Participation.pdf". This e-mail should be sent to <i>[Insert dedicated e-mail address]</i> before the deadline for bid submission. 6. Withdrawal of Electronic Bid Bids may only be withdrawn prior the deadline for bid submission. In case of withdrawal of an electronic bid, the bidder shall send an e-mail with the subject "Bid Withdrawal for <Contract ID>" and the letter of bid withdrawal in pdf format with filename "<PCAB ID>_<CONTRACT ID>_BidWithdrawal.pdf" shall be attached. This e-mail should be sent to <i>[Insert dedicated e-mail address]</i> before the deadline for bid submission. 7. Opening of the electronic bid Only during the actual opening of bids shall the bidder disclose the passwords for his electronic bid. This can be done by the bidder's authorized representative verbally in person, through phone call, online platforms (e.g. videoconferencing, webcasting), or through writing. In all cases, the bidders will have only three (3) attempts or fifteen (15) minutes, whichever comes first, to provide the correct password. Otherwise, the bidder shall be disqualified except in unforeseen justifiable circumstances. The bidder may also be subjected to the three-strike policy (D.O. 17, Series of 2015) as warranted by the circumstances. If the bidder chooses to disclose the password through phone call, he should make sure that the contact numbers as recorded in the Civil Works Application are open when the BAC calls to ask for the password. The bidder may also choose to call the BAC number <i>[Insert BAC phone number]</i> during the bid opening time and wait for the opening of his bid for him to disclose the password. For online call/video calls, the bidder may call the BAC Messenger/Skype account <i>[Insert BAC Messenger/Skype Account]</i>. If the bidder chooses to attend the bid opening through online conference, the bidder should join the meeting using the following link <i>[Insert link]</i>. If the bidder chooses to disclose the passwords through writing, the letters for password 1 (Main File Folder/Technical Component File Folder) and password 2 (Financial Component File Folder) should be enclosed in separate envelopes with the
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	sender details (AMO, Bidder Name, Address) addressed to the BAC Chairperson, with the details of the bidding (Contract ID, Contract Name, Bid Opening Date and Time), signed and sealed, with a remark "Password [Insert 1 or 2]. Do not open before actual bid opening date and time". All electronic bids (Password protected compressed archive main file folder/s) shall be opened first for the opening of the Technical Component compressed archive file folder/s. This shall be followed by the opening of the bids submitted manually for the opening of the Technical Component Envelopes. The same procedures apply for the Financial Component compressed archive file folder/s and financial component envelopes. If the electronic bid or file within it was found to be damaged, could not be extracted or opened, the bid shall be considered "Failed". If the electronic bid is not password-protected or is not in the required format, the bid shall still be accepted provided that the bidder acknowledges such condition. The BAC shall assume no responsibility for the misplacement of the contents of the contents of the improperly sealed or marked bid, or improperly compressed or password-protected folder, or for its premature opening. 8. File name convention in case of a Joint Venture Bidder For Joint Venture (JV), the format of PCAB ID to be used by the bidder in naming their files, folders and archives shall be "JV-<PCAB ID of the Lead Member>". For example, if three (3) Contractors with PCAB ID Nos. 12345 (lead member), 67890, and 24680 entered into a JV, the PCAB ID they must use is "JV-12345".
19.2	Partial bids are not allowed.
20	Not Applicable
21	List of additional contract documents relevant to the Project that may be required by existing laws and/or the Procuring Entity, such as construction schedule and S-curve, Manpower Schedule, Construction Methods, Equipment Utilization Schedule, Construction Safety and Health Program approved by the Department of Labor and Employment, and Precedence Diagram Method (PDM).

24BJ0005: Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation
Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Baleté Section,
Location: Sta. Fe, Nueva Vizcaya
Date of Opening of Proposal: 11-20-2023

Section IV. General Conditions of Contract

1. Scope of Contract

This Contract shall include all such items, although not specifically mentioned, that can be reasonably inferred as being required for its completion as if such items were expressly mentioned herein. All the provisions of RA No. 9184 and its 2016 revised IRR, including the Generic Procurement Manual, and associated issuances, constitute the primary source for the terms and conditions of the Contract, and thus, applicable in contract implementation. Herein clauses shall serve as the secondary source for the terms and conditions of the Contract.

This is without prejudice to Sections 74.1 and 74.2 of the 2016 revised IRR of RA No. 9184 allowing the GPPB to amend the IRR, which shall be applied to all procurement activities, the advertisement, posting, or invitation of which were issued after the effectivity of the said amendment.

2. Sectional Completion of Works

If sectional completion is specified in the **Special Conditions of Contract (SCC)**, references in the Conditions of Contract to the Works, the Completion Date, and the Intended Completion Date shall apply to any Section of the Works (other than references to the Completion Date and Intended Completion Date for the whole of the Works).

3. Possession of Site

- 3.1 The Procuring Entity shall give possession of all or parts of the Site to the Contractor based on the schedule of delivery indicated in the **SCC**, which corresponds to the execution of the Works. If the Contractor suffers delay or incurs cost from failure on the part of the Procuring Entity to give possession in accordance with the terms of this clause, the Procuring Entity's Representative shall give the Contractor a Contract Time Extension and certify such sum as fair to cover the cost incurred, which sum shall be paid by Procuring Entity.
- 3.2 If possession of a portion is not given by the above date, the Procuring Entity will be deemed to have delayed the start of the relevant activities. The resulting adjustments in contract time to address such delay may be addressed through contract extension provided under Annex "E" of the 2016 revised IRR of RA No. 9184.

4. The Contractor's Obligations

The Contractor shall employ the key personnel named in the Schedule of Key Personnel indicating their designation, in accordance with **ITB** Clause 10.3 and specified in the **BDS**, to carry out the supervision of the Works.

The Procuring Entity will approve any proposed replacement of key personnel only if their relevant qualifications and abilities are equal to or better than those of the personnel listed in the Schedule.

5. Performance Security

- 5.1. Within ten (10) calendar days from receipt of the Notice of Award from the Procuring Entity but in no case later than the signing of the contract by both parties, the successful Bidder shall furnish the performance security in any of the forms prescribed in Section 39 of the 2016 revised IRR.
- 5.2. The Contractor, by entering into the Contract with the Procuring Entity, acknowledges the right of the Procuring Entity to institute action pursuant to RA No. 3688 against any subcontractor be they an individual, firm, partnership, corporation, or association supplying the Contractor with labor, materials and/or equipment for the performance of this Contract.

6. Site Investigation Reports

The Contractor, in preparing the Bid, shall rely on any Site Investigation Reports referred to in the **SCC** supplemented by any information obtained by the Contractor.

7. Warranty

- 7.1. In case the Contractor fails to undertake the repair works under Section 62.2.2 of the 2016 revised IRR, the Procuring Entity shall forfeit its performance security, subject its property(ies) to attachment or garnishment proceedings, and perpetually disqualify it from participating in any public bidding. All payables of the GOP in his favor shall be offset to recover the costs.
- 7.2. The warranty against Structural Defects/Failures, except that occasioned-on force majeure, shall cover the period from the date of issuance of the Certificate of Final Acceptance by the Procuring Entity. Specific duration of the warranty is found in the **SCC**.

8. Liability of the Contractor

Subject to additional provisions, if any, set forth in the **SCC**, the Contractor's liability under this Contract shall be as provided by the laws of the Republic of the Philippines.

If the Contractor is a joint venture, all partners to the joint venture shall be jointly and severally liable to the Procuring Entity.

9. Termination for Other Causes

Contract termination shall be initiated in case it is determined prima facie by the Procuring Entity that the Contractor has engaged, before, or during the implementation of the contract, in unlawful deeds and behaviors relative to contract acquisition and implementation, such as, but not limited to corrupt, fraudulent, collusive, coercive, and obstructive practices as stated in **ITB** Clause 4.

10. Dayworks

Subject to the guidelines on Variation Order in Annex "E" of the 2016 revised IRR of RA No. 9184, and if applicable as indicated in the **SCC**, the Dayworks rates in the Contractor's Bid shall be used for small additional amounts of work only when the Procuring Entity's Representative has given written instructions in advance for additional work to be paid for in that way.

11. Program of Work

- 11.1. The Contractor shall submit to the Procuring Entity's Representative for approval the said Program of Work showing the general methods, arrangements, order, and timing for all the activities in the Works. The submissions of the Program of Work are indicated in the **SCC**.
- 11.2. The Contractor shall submit to the Procuring Entity's Representative for approval an updated Program of Work at intervals no longer than the period stated in the **SCC**. If the Contractor does not submit an updated Program of Work within this period, the Procuring Entity's Representative may withhold the amount stated in the **SCC** from the next payment certificate and continue to withhold this amount until the next payment after the date on which the overdue Program of Work has been submitted.

12. Instructions, Inspections and Audits

The Contractor shall permit the GOP or the Procuring Entity to inspect the Contractor's accounts and records relating to the performance of the Contractor and to have them audited by auditors of the GOP or the Procuring Entity, as may be required.

13. Advance Payment

The Procuring Entity shall, upon a written request of the Contractor which shall be submitted as a Contract document, make an advance payment to the Contractor in an amount not exceeding fifteen percent (15%) of the total contract price, to be made in lump sum, or at the most two installments according to a schedule specified in the **SCC**, subject to the requirements in Annex "E" of the 2016 revised IRR of RA No. 9184.

14. Progress Payments

The Contractor may submit a request for payment for Work accomplished. Such requests for payment shall be verified and certified by the Procuring Entity's Representative/Project Engineer. Except as otherwise stipulated in the **SCC**, materials and equipment delivered on the site but not completely put in place shall not be included for payment.

15. Operating and Maintenance Manuals

- 15.1. If required, the Contractor will provide "as built" Drawings and/or operating and maintenance manuals as specified in the **SCC**.
- 15.2. If the Contractor does not provide the Drawings and/or manuals by the dates stated above, or they do not receive the Procuring Entity's Representative's approval, the Procuring Entity's Representative may withhold the amount stated in the **SCC** from payments due to the Contractor.

Section V. Special Conditions of Contract

Special Conditions of Contract

GCC Clause	
3.1	The Procuring Entity shall give possession of all parts of the Site to the Contractor upon issuance of NTP.
6	The site investigation reports are: None
7.2	a. <u>Semi-Permanent Structures: Five (15) years</u> Buildings of types 4 (steel, iron, concrete or masonry construction with walls, ceilings, and permanent partitions of incombustible fire resistance) and 5 (steel, iron, concrete or masonry construction), steel and concrete bridges, flyovers, concrete aircraft movement areas, ports, dams, diversion tunnels, causeways, wharves, piers, dikes, filtration and treatment plants, sewerage systems, power plants, transmission and communication towers, railway system, and other similar structures.
10	No dayworks are applicable to the contract.
11.1	The Contractor shall submit the Program of Work to the Procuring Entity's Representative within Thirty (30) days of delivery of the Notice of Award.
11.2	The amount to be withheld for late submission of an updated Program of Work is one percent (1%) of the progress billing.
13	The amount of the advance payment is fifteen percent (15%) of the Contract Price.
14	Materials and equipment delivered on the site but not completely put in place shall be included for payment.
15.1	The date by which operating and maintenance manuals are required is Thirty (30) days upon completion of the project "As-Built" plans shall be submitted by the contractor within thirty (30) days upon reaching 95% completion of the project. (D.O. 38 s 2016)
15.2	The amount to be withheld for failing to produce "as built" drawings and/or operating and maintenance manuals by the date required is 10% of the Contract Price.
	The intended contract duration is 250 Calendar Days Inclusive of 33 unworkable/rainy days and Sundays and Holidays

Section VI. Specifications

(refer to approved plans)

Section VII. Drawings

(see approved plans)

Section VIII. Bill of Quantities

BILL OF QUANTITIES					
Part No.	Part Description:				
Pay Item No.	Description	Unit	Quantity	Unit Price (Pesos)	Amount (Pesos)
(1)	(2)	(3)	(4)	(5)	(6)
PART A	FACILITIES FOR THE ENGINEER				
A.1.1(8)	Provision of Field Office for the Engineer (Rental Basis)	Mo.	8.20	In Words: Pesos In Figures: Php	In Figures: Php
A.1.1 (16)	Operation & Maintenance of Field Office for the Engineer	Mo.	8.20	In Words: Pesos In Figures: Php	In Figures: Php
A.1.2(2)	Provision of 4x4 Pick Up Type Service Vehicle for the Engineer on Bare Rental Basis	Vehicle-Month	8.20	In Words: Pesos In Figures: Php	In Figures: Php
A.1.2(5)	Operation and Maintenance of 4x4 Pick Up Type Service Vehicle for the Engineer	Vehicle-Month	8.20	In Words: Pesos In Figures: Php	In Figures: Php
A.1.4(1)	Provision of Progress Photographs	Mo.	8.20	In Words: Pesos In Figures: Php	In Figures: Php
PART B	OTHER GENERAL REQUIREMENTS				
B.5(1)	Project Billboard/Signboard	Ea.	1.00	In Words: Pesos In Figures: Php	In Figures: Php
Sub-Total for this Page					In Words: Pesos In Figures: Php
Submitted by:					
Name and Signature of Bidder's Representative			Date:		
Position					
Name of Bidder					

* Check **Particulars** for detailed requirements.

24BJ0005: Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Balete Section,
Location: Sta. Fe, Nueva Vizcaya
Date of Opening of Proposal: 11-20-2023

BILL OF QUANTITIES					
Part No.	Part Description:				
Pay Item No.	Description	Unit	Quantity	Unit Price (Pesos)	Amount (Pesos)
(1)	(2)	(3)	(4)	(5)	(6)
B.7(1)	Occupational Safety and Health Program	L.S.	1.00	In Words: Pesos In Figures: Php	In Figures: Php
B.9(1)	Mobilization/ Demobilization	L.S.	1.00	In Words: Pesos In Figures: Php	In Figures: Php
PART L-A	EARTHWORKS				
1701(4)	Surplus Unclassified Excavation	Cu. M.	23,441.00	In Words: Pesos In Figures: Php	In Figures: Php
1704(1)a	Embankment, from Roadway/Structure excavation	Cu. M.	10,278.00	In Words: Pesos In Figures: Php	In Figures: Php
1704(1)b	Embankment, from Borrow	Cu. M.	2,998.52	In Words: Pesos In Figures: Php	In Figures: Php
PART L-B	BANK AND SLOPE PROTECTION WORKS				
1713(1)	Rubble Concrete	Cu. M.	18,761.95	In Words: Pesos In Figures: Php	In Figures: Php
Sub-Total for this Page					In Words: Pesos In Figures: Php
Submitted by:					
Name and Signature of Bidder's Representative			Date:		
Position					
Name of Bidder					

BILL OF QUANTITIES					
Part No.	Part Description:				
Pay Item No.	Description	Unit	Quantity	Unit Price (Pesos)	Amount (Pesos)
(1)	(2)	(3)	(4)	(5)	(6)
1714(1)a3	Gabion 1mx1mx2m, Metallic Coated	Cu. M.	3,300.00	In Words: Pesos In Figures: Php	In Figures: Php
PART L-C	DRAINAGE WORKS				
1718(1)a3	Pipe Culverts	In.m.	14.00	In Words: Pesos In Figures: Php	In Figures: Php
Sub-Total for this Page					In Words: Pesos In Figures: Php
Submitted by:					
Name and Signature of Bidder's Representative				Date:	
Position					
Name of Bidder					

Particulars

PART A. FACILITIES FOR THE ENGINEER

ITEM A.1.1(8) : Provision of Field Office for the Engineer (Rental Basis)

Name and Specification	Unit	Quantity
House Rental	Mo	1.00

ITEM A.1.2(16) : Operation & Maintenance of Field Office for the Engineer

Name and Specification	Unit	Quantity
Electric Bill	mo	1.00
Water Bill	mo	1.00

ITEM A.1.2(2) : Provision of 4x4 Pick Up Type Service Vehicle for the Engineer

Name and Specification	Unit	Quantity
4x4 Pick Up or equivalent	Vehicle month	1.00

ITEM A.1.2(5) : Operation and Maintenance of 4x4 Pick Up Type Service Vehicle for the Engineer

Name and Specification	Unit	Quantity
Labor:		
Driver		
Materials:		
Fuel Diesel (60 ltr./week)	ltr	256.25
Lubricant		

ITEM A.1.4(1) : Provision of Progress Photographs

Name and Specification	Unit	Quantity
Photo Album and Printing	pc	120.00

PART B. OTHER GENERAL REQUIREMENTS

ITEM B.5 : Project Billboard / Signboard

Name and Specification	Unit	Quantity
Labor:		
Construction Foreman		
Skilled		
Unskilled		
Equipment:		
Minor Tools		
Materials:		
Tarpaulin 4' x 8' (DPWH Billboard)	pc	1.00

24BJ0005: Protect Lives and Properties Against Major Floods: Construction/Maintenance of Flood Mitigation Structures and Drainage Systems: Construction of Flood Control along Sta. Fe River, Baleté Section, Location: Sta. Fe, Nueva Vizcaya
Date of Opening of Proposal: 11-20-2023

Tarpaulin 8' x 8' (COA Billboard)	pc	1.00
Marine Plywood, 1/4" Thk	pc	3.00
Lumber	Bd.ft	126.00
Assorted CWN	kg	1.26

ITEM B.7(1) : Occupational Safety and Health Program

Name and Specification
Labor:
Safety Officer (Part Time)
Health Personnel
Materials
Safety Helmet, Safety Shoes, Safety Vest, Working Gloves , Rubber Boots, Rain Coats

ITEM B.9 Mobilization/Demobilization

Shall not exceed one percent (1%) of the direct cost for civil works

(Refer to approved plans for specifications and materials requirement)

Note: For civil works component (refer to approved plans and specifications)

Section IX. Checklist of Technical and Financial Documents

Checklist of Technical and Financial Documents

I. TECHNICAL COMPONENT ENVELOPE

Class "A" Documents

Legal Documents

- ☐ (a) Valid PhilGEPS Registration Certificate (Platinum Membership) (all pages);
or
- ☐ (b) Registration certificate from Securities and Exchange Commission (SEC), Department of Trade and Industry (DTI) for sole proprietorship, or Cooperative Development Authority (CDA) for cooperatives or its equivalent document;
and
- ☐ (c) Mayor's or Business permit issued by the city or municipality where the principal place of business of the prospective bidder is located, or the equivalent document for Exclusive Economic Zones or Areas;
and
- ☐ (e) Tax clearance per E.O. No. 398, s. 2005, as finally reviewed and approved by the Bureau of Internal Revenue (BIR).

Technical Documents

- ☐ (f) Statement of the prospective bidder of all its ongoing government and private contracts, including contracts awarded but not yet started, if any, whether similar or not similar in nature and complexity to the contract to be bid; **and**
- ☐ (g) Statement of the bidder's Single Largest Completed Contract (SLCC) similar to the contract to be bid, except under conditions provided under the rules;
and
- ☐ (h) Philippine Contractors Accreditation Board (PCAB) License;
or
Special PCAB License in case of Joint Ventures;
and registration for the type and cost of the contract to be bid; **and**
- ☐ (i) Original copy of Bid Security. If in the form of a Surety Bond, submit also a certification issued by the Insurance Commission;
or
Original copy of Notarized Bid Securing Declaration; **and**
- ☐ (j) Project Requirements, which shall include the following:
 - ☐ a. Organizational chart for the contract to be bid;
 - ☐ b. List of contractor's key personnel (e.g., Project Manager, Project Engineers, Materials Engineers, and Foremen), to be assigned to the contract to be bid, with their complete qualification and experience data;
 - ☐ c. List of contractor's major equipment units, which are owned, leased, and/or under purchase agreements, supported by proof of ownership or certification of availability of equipment from the equipment lessor/vendor for the duration of the project, as the case may be; **and**
- ☐ (k) Original duly signed Omnibus Sworn Statement (OSS);
and if applicable, Original Notarized Secretary's Certificate in case of a corporation, partnership, or cooperative; or Original Special Power of Attorney of all members of the joint venture giving full power and authority to its officer to sign the OSS and do acts to represent the Bidder.

Financial Documents

- ☐ (l) The prospective bidder's audited financial statements, showing, among

others, the prospective bidder's total and current assets and liabilities, stamped "received" by the BIR or its duly accredited and authorized institutions, for the preceding calendar year which should not be earlier than two (2) years from the date of bid submission; **and**

- ☐ (m) The prospective bidder's computation of Net Financial Contracting Capacity (NFCC).

Class "B" Documents

- ☐ (n) If applicable, duly signed joint venture agreement (JVA) in accordance with RA No. 4566 and its IRR in case the joint venture is already in existence;
or
duly notarized statements from all the potential joint venture partners stating that they will enter into and abide by the provisions of the JVA in the instance that the bid is successful.

II. FINANCIAL COMPONENT ENVELOPE

- ☐ (o) Original of duly signed and accomplished Financial Bid Form; **and**

Other documentary requirements under RA No. 9184

- ☐ (p) Original of duly signed Bid Prices in the Bill of Quantities; **and**
- ☐ (q) Duly accomplished Detailed Estimates Form, including a summary sheet indicating the unit prices of construction materials, labor rates, and equipment rentals used in coming up with the Bid; **and**
- ☐ (r) Cash Flow by Quarter.

Section X. Bidding Forms

The Bidder shall use the Bidding Forms listed below in preparing its Bid and in case it is awarded the contract, in preparing the documents required to perfect the contract.

GPPB Form : Bid Form

GPPB Form : Form of Bid Securing Declaration

GPPB Form : Sworn Statement Required by IRR Section 25.2(b)(ix)

DPWH-INFR-10: Form of Bid Security: Bank Guarantee

DPWH-INFR-11: Form of Bid Security: Irrevocable Letter of Credit

DPWH-INFR-13 Contractor's Organizational Chart for the Contract

DPWH-INFR-14: List of Contractor's Key Personnel to be Assigned to the Contract, with their Qualification and Experience Data

DPWH-INFR-15: List of Contractor's Equipment Units to be Assigned to the Contract, Supported by Certificates of Availability

DPWH-INFR-17: Bill of Quantities (BOQ)

DPWH-INFR-18: Summary of Bid Prices

DPWH-INFR-19: Cash Flow by Quarter

DPWH-INFR-20: Bidder's Checklist of Requirements for its Bid, including Technical and Financial Proposal Requirement for Bidders

DPWH-INFR-43: Performance Security: Irrevocable Letter of Credit

DPWH-INFR-44: Performance Security: Bank Guarantee

DPWH-INFR-45: Construction Methods

DPWH-INFR-46: Construction Schedule in the form of PERT/CPM or Precedence Diagram and Bar Chart with S-Curve and Cash Flow

DPWH-INFR-47: Manpower Schedule

DPWH-INFR-48: Major Equipment Utilization Schedule

DPWH-INFR-49: Construction Safety and Health Program

DPWH-INFR-50: Checklist of Contract Documents and Supporting Documents

DPWH-INFR-51: Form of Contract Agreement

The content of each of these forms is given in the attached folder marked "ANNEX IIB – Standard Bidding Forms." The bidder may download these forms from the DPWH website.

The bidder may also obtain from the Procuring Entity hard copies of these forms as part of the BDs for the contract.

BID FORM

Date : _____

Project Identification No. : _____

To: [name and address of Procuring Entity]

Having examined the Philippine Bidding Documents (PBDs) including the Supplemental or Bid Bulletin Numbers [insert numbers], the receipt of which is hereby duly acknowledged, we, the undersigned, declare that:

- a. We have no reservation to the PBDs, including the Supplemental or Bid Bulletins, for the Procurement Project: [insert name of contract];
- b. We offer to execute the Works for this Contract in accordance with the PBDs;
- c. The total price of our Bid in words and figures, excluding any discounts offered below is: [insert information];
- d. The discounts offered and the methodology for their application are: [insert information];
- e. The total bid price includes the cost of all taxes, such as, but not limited to: [specify the applicable taxes, e.g. (i) value added tax (VAT), (ii) income tax, (iii) local taxes, and (iv) other fiscal levies and duties], which are itemized herein and reflected in the detailed estimates,
- f. Our Bid shall be valid within the a period stated in the PBDs, and it shall remain binding upon us at any time before the expiration of that period;
- g. If our Bid is accepted, we commit to obtain a Performance Security in the amount of [insert percentage amount] percent of the Contract Price for the due performance of the Contract, or a Performance Securing Declaration in lieu of the the allowable forms of Performance Security, subject to the terms and conditions of issued GPPB guidelines¹ for this purpose;
- h. We are not participating, as Bidders, in more than one Bid in this bidding process, other than alternative offers in accordance with the Bidding Documents;
- i. We understand that this Bid, together with your written acceptance thereof included in your notification of award, shall constitute a binding contract between us, until a formal Contract is prepared and executed; and
- j. We understand that you are not bound to accept the Lowest Calculated Bid or any other Bid that you may receive.
- k. We likewise certify/confirm that the undersigned, is the duly authorized representative of the bidder, and granted full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for the [Name of Project] of the [Name of the

¹ currently based on GPPB Resolution No. 09-2020

Procuring Entity].

- I. We acknowledge that failure to sign each and every page of this Bid Form, including the Bill of Quantities, shall be a ground for the rejection of our bid.

Name: _____

Legal Capacity: _____

Signature: _____

Duly authorized to sign the Bid for and behalf of: _____

Date: _____

Department of Public Works and Highways

Contract ID:

Contract Name:

Location of the Contract:

FORM OF BID SECURITY: BANK GUARANTEE

WHEREAS, Name of Bidder, hereinafter called "the Bidder," has submitted its bid dated _____ for the Contract ID and Name, hereinafter called "the Bid."

KNOW ALL MEN by these presents that We, Name of Bank of Name of Country, having our registered office at _____, hereinafter called "the Bank," are bound unto Name of Procuring Entity, hereinafter called "the Entity," in the sum of amount in words and figures for which payment well and truly to be made to the said Entity the Bank binds itself, its successors and assigns by these presents.

SEALED with the Common Seal of the said Bank this _____ day of _____ 20____.

THE CONDITIONS of this obligation are that:

- 1) if the Bidder withdraws the Bid during the period of bid validity specified in the Form of Bid; or
- 2) if the Bidder does not accept the correction of arithmetical errors of its bid price in accordance with the Instructions to Bidder; or
- 3) if the Bidder having been notified of the acceptance of the Bid and award of contract to it by the Entity during the period of bid validity:
 - a) fails or refuses to submit the requirements for and to execute the Form of Contract in accordance with the Instructions to Bidders, if required; or
 - b) fails or refuses to furnish the Performance Security in accordance with the Instructions to Bidders;

we undertake to pay to the Entity up to the above amount upon receipt of its first written demand, without the Entity having to substantiate its demand, provided that in its demand the Entity will note that the amount claimed by it is due to the occurrence of any one or combination of the three (3) conditions stated above.

The Guarantee will remain in force up to a period of _____ days after the opening of bids as stated in the Instructions to Bidders or as it may be extended by the Entity, notice of which extension(s) to the Bank is hereby waived. Any demand in respect of this Guarantee should reach the Bank within the said period.

Name and Signature of Bank's Authorized Signatory

Date:

Position

Department of Public Works and Highways

Contract ID:

Contract Name:

Location of the Contract:

FORM OF BID SECURITY: IRREVOCABLE LETTER OF CREDIT

Date of Issuance

Name of Head of Procuring Entity

Position

Name of Procuring Entity

Address

Irrevocable Letter of Credit No. _____

For: Contract ID and Name

WHEREAS, Name of Bidder, hereinafter called the "Bidder," has undertaken to submit to you a bid for the above stated Contract, and whereas you have stipulated in the Instructions to Bidders for the said Contract that the Bidder shall furnish you with an irrevocable standby Letter of Credit for a sum specified therein as Bid Security for the faithful compliance of the obligations of the Bidder:

WHEREAS, the Conditions of this obligation are that:

- 1) if the Bidder withdraws the Bid during the period of bid validity specified in the Form of Bid; or
- 2) if the Bidder does not accept the correction of arithmetical errors of its bid price in accordance with the Instructions to Bidder; or
- 3) if the Bidder having been notified of the acceptance of the Bid and award of contract to it by the Entity during the period of bid validity:
 - a) fails or refuses to submit the requirements for and to execute the Form of Contract in accordance with the Instructions to Bidders; or
 - b) fails or refuses to furnish the Performance Security in accordance with the Instructions to Bidders;

we undertake to pay to the Entity up to the above amount upon receipt of its first written demand, without the Entity having to substantiate its demand, provided that in its demand the Entity will note that the amount claimed by it is due to the occurrence of any one or combination of the three (3) conditions stated above.

WHEREAS, we have agreed to guarantee this obligation of the Bidder.

THEREFORE, we hereby affirm that we are guarantors and responsible to you, on behalf of the Bidder, up to the total amount of amount of guarantee and we undertake to pay you, upon first written demand declaring the Bidder to be in default under the Instructions to

Department of Public Works and Highways

Contract ID:

Contract Name:

Location of the Contract:

Bidders and without cavil or argument, any sum or sums within the limits of amount of guarantee as aforesaid, without you needing to prove or show grounds or reasons for your demand for the sum specified therein.

This irrevocable guarantee is valid until one hundred twenty (120) calendar days after the date of opening of bids for the said Contract on date.

This certification is being issued in favor of the said Bidder in connection with your requirements of the bidding for the said Contract. We are aware that any false statements issued by us make us liable to perjury.

Name and Signature of Authorized Financing Institution
Official Designation

Concurred by:

Name and Signature of Bidder's Authorized Representative
Official Designation

Bid Securing Declaration Form
[shall be submitted with the Bid if bidder opts to provide this form of bid security]

REPUBLIC OF THE PHILIPPINES)

CITY OF _____) S.S.

BID SECURING DECLARATION
Project Identification No.: *[Insert number]*

To: [Insert name and address of the Procuring Entity]

I/We, the undersigned, declare that:

1. I/We understand that, according to your conditions, bids must be supported by a Bid Security, which may be in the form of a Bid Securing Declaration.
2. I/We accept that: (a) I/we will be automatically disqualified from bidding for any procurement contract with any procuring entity for a period of two (2) years upon receipt of your Blacklisting Order; and, (b) I/we will pay the applicable fine provided under Section 6 of the Guidelines on the Use of Bid Securing Declaration, within fifteen (15) days from receipt of the written demand by the procuring entity for the commission of acts resulting to the enforcement of the bid securing declaration under Sections 23.1(b), 34.2, 40.1 and 69.1, except 69.1(f), of the IRR of RA No. 9184; without prejudice to other legal action the government may undertake.
3. I/We understand that this Bid Securing Declaration shall cease to be valid on the following circumstances:
 - a. Upon expiration of the bid validity period, or any extension thereof pursuant to your request;
 - b. I am/we are declared ineligible or post-disqualified upon receipt of your notice to such effect, and (i) I/we failed to timely file a request for reconsideration or (ii) I/we filed a waiver to avail of said right; and
 - c. I am/we are declared the bidder with the Lowest Calculated Responsive Bid, and I/we have furnished the performance security and signed the Contract.

IN WITNESS WHEREOF, I/We have hereunto set my/our hand/s this _____ day of [month] [year] at [place of execution].

[Insert NAME OF BIDDER OR ITS AUTHORIZED
REPRESENTATIVE]
[Insert signatory's legal capacity]
Affiant

[Jurat]

[Format shall be based on the latest Rules on Notarial Practice]

Department of Public Works and Highways

Contract ID:

Contract Name:

Location of the Contract:

**LIST OF CONTRACTOR'S KEY PERSONNEL TO BE ASSIGNED TO THE
CONTRACT, WITH THEIR QUALIFICATION DATA**

Date of Issuance

Name of Head of Procuring Entity

Position

Name of Procuring Entity

Address

Dear Sir/Madame:

Supplementing our Organizational Chart for the abovestated Contract, we submit, and certify as true and correct, the following information:

1. We have engaged the services of the following key personnel to perform the duties of the positions indicated in the abovestated Contract if it is awarded to us:

Proposed Position (<i>as applicable</i>)	Name	Years of Experience	
		Total (Similar and Related)	Similar Position
Project Manager			
Project Engineer			
Materials Engineer			
Construction Safety Officer			
Foreman			
<i>Others (specify)</i>			

2. We submit the enclosed Curriculum Vitae and Affidavits of Commitment to Work on the Contract of these key personnel.
3. We ensure that the abovementioned personnel shall employ their best care, skill, and ability in performing the duties of their respective positions in accordance with the provisions of the Contract, including the Conditions of Contract, Specifications, and Drawings, and that they shall be personally present in the jobsite during the period of their assignment in the Contract.
4. In the event that we choose to replace any of the abovementioned key personnel, we shall submit to you in writing at least fourteen (14) days before making the replacement, for your approval, the name and biodata of the proposed replacement whose qualifications shall be equal to or better than that of the person to be replaced.
5. We understand that any violation of the abovestated conditions shall be a sufficient ground for us to be disqualified from this Contract and future biddings of the DPWH.

Very truly yours,

Name and Signature of Bidder's Authorized Representative

DPWH-INFR-14-2016

Department of Public Works and Highways

Contract ID:

Contract Name:

Location of the Contract:

**LIST OF CONTRACTOR'S MAJOR CONSTRUCTION AND LABORATORY EQUIPMENT UNITS TO BE ASSIGNED TO THE CONTRACT,
SUPPORTED BY CERTIFICATIONS OF AVAILABILITY**

Business Name : _____
Business Address : _____

Description	Model/Year	Capacity / Performance / Size	Plate No.	Motor No. / Body No.	Location	Condition	Proof of Ownership / Lease/Purchase
A. Owned¹							
i.							
ii.							
iii.							
iv.							
v.							
B. Leased²							
i.							
ii.							
iii.							
iv.							
v.							
C. Under Purchase Agreements³							
i.							
ii.							
iii.							
iv.							
v.							

¹ Attached are copies of sales invoice / Registration Certificate from LTO.

² Attached are the certifications from the lessors that the equipment units under B (Leased) shall be available for this contract.

³ Attached are the certifications from the vendors that the equipment units under C (Purchase Agreements) shall be available for this contract.

Minimum major construction equipment requirement as prescribed in the Bid Data Sheet:

Minimum major laboratory equipment requirements as prescribed in Bid Data Sheet:

Name and Signature of Bidder's Representative

Position:

Date: _____

Name of Bidder:

Omnibus Sworn Statement (Revised)
[shall be submitted with the Bid]

REPUBLIC OF THE PHILIPPINES)

CITY/MUNICIPALITY OF _____) S.S.

AFFIDAVIT

I, [Name of Affiant], of legal age, [Civil Status], [Nationality], and residing at [Address of Affiant], after having been duly sworn in accordance with law, do hereby depose and state that:

1. [Select one, delete the other:]

[If a sole proprietorship:] I am the sole proprietor or authorized representative of [Name of Bidder] with office address at [address of Bidder];

[If a partnership, corporation, cooperative, or joint venture:] I am the duly authorized and designated representative of [Name of Bidder] with office address at [address of Bidder];

2. [Select one, delete the other:]

[If a sole proprietorship:] As the owner and sole proprietor, or authorized representative of [Name of Bidder], I have full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for [Name of the Project] of the [Name of the Procuring Entity], as shown in the attached duly notarized Special Power of Attorney;

[If a partnership, corporation, cooperative, or joint venture:] I am granted full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for [Name of the Project] of the [Name of the Procuring Entity], as shown in the attached [state title of attached document showing proof of authorization (e.g., duly notarized Secretary's Certificate, Board/Partnership Resolution, or Special Power of Attorney, whichever is applicable)];

3. [Name of Bidder] is not "blacklisted" or barred from bidding by the Government of the Philippines or any of its agencies, offices, corporations, or Local Government Units, foreign government/foreign or international financing institution whose blacklisting rules have been recognized by the Government Procurement Policy Board, **by itself or by relation, membership, association, affiliation, or controlling interest with another blacklisted person or entity as defined and provided for in the Uniform Guidelines on Blacklisting;**
4. Each of the documents submitted in satisfaction of the bidding requirements is an authentic copy of the original, complete, and all statements and information provided therein are true and correct;
5. [Name of Bidder] is authorizing the Head of the Procuring Entity or its duly authorized representative(s) to verify all the documents submitted;
6. [Select one, delete the rest:]

[If a sole proprietorship:] The owner or sole proprietor is not related to the Head of the Procuring Entity, members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

[If a partnership or cooperative:] None of the officers and members of [Name of Bidder] is related to the Head of the Procuring Entity, members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

[If a corporation or joint venture:] None of the officers, directors, and controlling stockholders of [Name of Bidder] is related to the Head of the Procuring Entity, members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

7. [Name of Bidder] complies with existing labor laws and standards; and
8. [Name of Bidder] is aware of and has undertaken the responsibilities as a Bidder in compliance with the Philippine Bidding Documents, which includes:
 - a. Carefully examining all of the Bidding Documents;
 - b. Acknowledging all conditions, local or otherwise, affecting the implementation of the Contract;
 - c. Making an estimate of the facilities available and needed for the contract to be bid, if any; and
 - d. Inquiring or securing Supplemental/Bid Bulletin(s) issued for the [Name of the Project].
9. [Name of Bidder] did not give or pay directly or indirectly, any commission, amount, fee, or any form of consideration, pecuniary or otherwise, to any person or official, personnel or representative of the government in relation to any procurement project or activity.
10. **In case advance payment was made or given, failure to perform or deliver any of the obligations and undertakings in the contract shall be sufficient grounds to constitute criminal liability for Swindling (Estafa) or the commission of fraud with unfaithfulness or abuse of confidence through misappropriating or converting any payment received by a person or entity under an obligation involving the duty to deliver certain goods or services, to the prejudice of the public and the government of the Philippines pursuant to Article 315 of Act No. 3815 s. 1930, as amended, or the Revised Penal Code.**

IN WITNESS WHEREOF, I have hereunto set my hand this ____ day of ____, 20__ at _____, Philippines.

[Insert NAME OF BIDDER OR ITS AUTHORIZED
REPRESENTATIVE]

[Insert signatory's legal capacity]
Affiant

[Jurat]

[Format shall be based on the latest Rules on Notarial Practice]

Contract ID : 23B00066

Contract Name : OO1: Ensure Safe and Reliable National Road System: Network Development Program: Construction of By-Pass and Diversion Roads - Alcala-Santo Niño-Lasam Road, Cagayan (Alcala Bridge), Cagayan - Package 1, Cagayan

Location of Contract : Alcala, Cagayan

Summary Sheet for Unit Prices and Rates

A. Labor

Manpower	Rate (Php)

B. Equipment Rental

Equipment	Rental Rate (Php)

C. Construction Materials

Construction Materials	Unit	Unit Price (Php)

Submitted by:

Name and Signature of Bidder's Representative

Date: _____

Position

Name of Bidder

Department of Public Works and Highways

Contract ID:

Contract Name:

Location of the Contract:

CASH FLOW BY QUARTER

PARTICULAR	TOTAL	YEAR				YEAR			
		1st Q	2nd Q	3rd Q	4th Q	1ST Q	2ND Q	3RD Q	4TH Q
ACCOMPLISHMENT, IN %	100.0%								
CASH FLOW, IN PhP									
CUMULATIVE ACCOMPLISHMENT, IN %	100.0%								
CUMULATIVE CASH FLOW, IN PhP									

PARTICULAR	TOTAL	YEAR				YEAR			
		1st Q	2nd Q	3rd Q	4th Q	1ST Q	2ND Q	3RD Q	4TH Q
ACCOMPLISHMENT, IN %									
CASH FLOW, IN PhP									
CUMULATIVE ACCOMPLISHMENT, IN %									
CUMULATIVE CASH FLOW, IN PhP									

Submitted by:

Name and Signature of Bidder's Representative

Position

Name of Bidder

Date: _____

